

Court No. - 39

WRIT - C No. - 21944 of 2021

Petitioner :- Shikhar Nayal

Respondent :- Uttar Pradesh Power Corporation Limited And 3 Others

Counsel for Petitioner :- Santosh Kumar Mishra

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Krishan Pahal,J.

The petitioner herein seeks electricity connection in the premises in question, owner of which is his father namely, Mohan Singh Nayab.

It is contended that the petitioner herein has been residing in the house in question along with his parents for a long time. The electricity connection exist in the name of petitioner's father. However, after marriage of the petitioner on certain dispute with his wife some criminal proceedings were lodged against the father of the petitioner by his wife. Being annoyed with this fact, the father of the petitioner got disconnected the electricity connection permanently on 7.7.2021.

Further contention is that the father of the petitioner has been transferred to District Rampur and is permanently residing therein. However, the petitioner is still residing in the premises in question along with his wife and being son of the owner he cannot said to be in unauthorized occupation or his occupation cannot be said to be illegal. An application for sanction of new electricity connection had been made on 7.7.2021 through online mode but the same has been rejected on 12.7.2021 on the ground that the landlord/owner of the house in question had refused to give no objection in favour of the petitioner.

The representation has, thereafter, been moved before the respondent No. 4 and 3 which were also rejected on 21.8.2021 and 28.1.2021, with the note that owner of the premises in

question, had not given no objection.

The contention of the learned counsel for the petitioner is that the electricity connection being the basic requirement of life cannot be denied to any person. Under Section 43(1) of the Electricity Act, 2003 either owner or occupant of premises is entitled to apply for electricity connection and on such application being made, it is the duty of the statutory licensee to provide electricity connection. Clause 4.4. of the Electricity Supply Code 2005 provides that in case occupant of the premises applies for electricity connection and the owner refuses to grant no objection certificate, connection can be granted by submitting indemnity bond as prescribed in the Electricity Supply Code, 2005. The proforma of the indemnity bond is contained in Annexure 4.2 of the Code 2005 which deals with a situation where occupant of the premises has applied for electricity connection but is unable to produce the consent of the owner.

The provisions of Section 43 r/w 4.4 of the Code 2005 has been considered by the Apex court in the case of **Chandu Khamaru vs. Smt. Nayan Malik AIR 2011 SCC 2897** wherein while interpreting the provisions of Section 41(1) it was held that in case of a family dispute, the Electricity Act takes full care for grant of electricity connection and it ensures that nobody is deprived of electricity connection only on account of internal family dispute. The proforma which is contained in Annexure '4.2' of the Electricity Supply Code 2005 provides to indemnify the licensee for any loss that may accrue on account of any act of a person in occupation of the building though he may not be owner. The Code 2005 provides either for consent letter of owner of the premises or in absence thereof indemnity bond by the lessee/tenant or occupier of the premises. The purpose is that in case, the occupier of the premises vacates and vanishes

without leaving his address, either the owner by giving his consent or in the alternative occupier giving undertaking shall indemnify any loss or damage to licensee on account of electricity connection being given to him without the consent of the owner of the land or premises, making it recoverable from him and his property under the provisions of the Revenue Act in force at the time of such recovery or by such other proceedings as the licensee may deem fit to initiate.

In the light of the above settled position pertaining to grant of electricity connection in the name of the occupier in a situation where the owner of the premises refuses to grant No objection, we are of the considered opinion that the request of the petitioner for grant of electricity connection requires fresh consideration.

We, therefore, dispose of the present petition with the direction to the Executive Engineer, Electricity Urban Distribution Division-II, Madhyanchal Vidyut Vitran Nigam Limited, Bareilly, to consider the application moved by the petitioner for grant of electricity connection afresh after issuing notice to the owner of the premises i.e. the father of the petitioner. The contention of the petitioner regarding his occupation of the building of the premises in question owned by his father shall also be duly dealt with and finding in this regard shall be recorded. Objections taken by the owner of the premises on the application moved by the petitioner shall be dealt with in detail while taking decision in the matter.

In any case, independent decision in the light of the direction given above shall be taken by the respondent No. 3 without being influenced by any observations made hereinabove,

In any case, an expeditious decision shall be taken in accordance with law, , within six weeks from the date of

receipt of copy of this order after affording due opportunity to the owner of the premises in question.

The writ petition is, accordingly, **disposed off**.

Order Date :- 8.11.2021

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